

26STCV01332 26STCV01332

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-13

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Case Number: 26STCV01332 Hearing Date: July 13, 2026 Dept: 512

HEARING DATE: Mon., July 13, 2026 JUDGE

/DEPT: Mkrtchyan/512

CASE NAME: Turrentine

v. HQ LA, Inc. COMP.

FILED: 01-14-26

CASE NUMBER: 26STCV01332

NOTICE:

OK

PROCEEDINGS: AMENDED MOTION TO BE RELIEVED AS
COUNSEL

MOVING PARTY: Counsel

Elizabeth Villarreal of Laurel Employment Law

RESP. PARTY: None

MOTION TO BE RELIEVED AS COUNSEL

(CCP § 284, CRC, rule 3.162)

TENTATIVE RULING:

Counsel Elizabeth Villarreal of

Laurel Employment Law's unopposed Amended Motion to be Relieved as Counsel for Plaintiff Danielle

Turrentine is GRANTED.

The Court's Ruling and Attorney's relief as Counsel of record for client is not effective until Proof of Service of the Order signed by the Court upon the client is served and filed in this action. Until then, counsel continues to be counsel of record. (Cal. Rules of Court 3.1362(e).)

"Amended Order Granting Attorney's Motion to Be Relieved as Counsel-Civil" is electronically signed by the Court and filed herein this date for reference.

Plaintiff's Counsel is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct
Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of June 3, 2026 ☐
Late ☒ None

REPLY: None
filed as of June 3, 2026 ☐ Late ☒ None

ANALYSIS:

I.
Background

On January 14, 2026, Plaintiff Danielle Turrentine ("Plaintiff") initiated the instant action against

Defendant HQ L.A. Inc. dba Hair Queen LA (“Defendant”) and Does 1-10, alleging 20 causes of action arising from Plaintiff’s employment with Defendant. (Compl., pp. 1-4.)

On April 24, 2026, Defendant filed an Answer.

On May 8, 2026, Plaintiff’s counsel Elizabeth Villarreal of Laurel Employment Law (“Counsel”) filed and served the instant Motion to be Relieved as Counsel for Plaintiff (the “Motion”).

On June 9, 2026, the Court continued the hearing on the Motion to allow Counsel to file supplemental papers addressing the deficiencies noted therein. (6/9/26 Order.)

On June 18, 2026, Counsel filed a Declaration regarding filing rejections and notice of the Court’s 6/9/26 ruling.

On June 23, 2026, Counsel filed and served the instant Amended Motion and accompanying documents.

No Opposition has been filed.

II.
Legal
Standard

Code of Civil Procedure section 284 states that “the attorney in an action...may be changed at any time before or after judgment or final determination, as follows: (1) Upon the consent of both client and attorney...; (2) Upon the order of the court, upon the application of either client or attorney, after notice from one to the other.” (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) “The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court.” (Manfredi & Levine v. Superior Court (1998) 66

Cal.App.4th 1128, 1133); see *Lempert v. Superior Court* (2003) 112 Cal.App.4th 1161, 1173.)

An application

to be relieved as counsel must be made on Judicial Counsel Forms MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).)

In addition,

California Rules of Court, rule 3.1362 subsection (d) requires that the notice of motion and motion, declaration, and proposed order be served on the client and all other parties who have appeared in the case by personal service, electronic service, or mail. If the notice is served by electronic service, it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address. (Cal. Rules of Court, rule 3.1362, subd. (d)(2).) As used in this rule, "current" means:

"[T]he address

was confirmed within 30 days before the filing of the motion to be relieved.

Merely

demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current."

(Cal. Rules of Court, rule 3.1362, subd. (d).)

III.

Discussion

On June 23, 2026,

Counsel moved the Court in the

Amended Motion to be relieved as attorney of record for Plaintiff. (MC-051.)

Counsel filed MC-051, MC-052, and MC-053 Forms. (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).)

Counsel seeks to be relieved under the

permissive grounds of California Rules of Professional Conduct, rule 1.16, subdivision (b)(4), which states a lawyer may withdraw from representing a client if the

client by other conduct renders it unreasonably difficult for the lawyer to carry out representation effectively. (MC-052, ¶ 2.)

The Court is satisfied with Counsel's reasons for seeking to be relieved. (Cal. Rules of Professional Conduct, rule 1.16.) The Court also finds the Amended Motion satisfactorily complies with California Rules of Court, rule 3.1362.

Thus,
the Motion is GRANTED.

IV.

Conclusion & Order

Accordingly, Counsel Elizabeth Villarreal of Laurel Employment Law's unopposed Amended Motion to be Relieved as Counsel for Plaintiff Danielle Turrentine is GRANTED.

The Court's Ruling and Attorney's relief as Counsel of record for client is not effective until Proof of Service of the Order signed by the Court upon the client is served and filed in this action. Until then, counsel continues to be counsel of record. (Cal. Rules of Court 3.1362(e).)

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